



CHAPTER xvii.

An Act to confirm a Provisional Order of the Minister of Health relating to the borough of Workington.

[3rd August 1944.]

WHEREAS under the provisions of the Public Health Act 38 & 39 Vict. 1875 the Minister of Health has made a Provisional Order c. 55. which needs confirmation by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order of the Minister of Health which is set out in the Order in schedule to this Act is hereby confirmed and shall have full ^{schedule} validity and force. _{confirmed.}

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Workington) Act 1944.

SCHEDULE.

BOROUGH OF WORKINGTON.

Provisional Order altering a local Act.

WHEREAS the mayor aldermen and burgesses of the borough of Workington acting by the council (in this Order called "the Corporation") in pursuance of various local Acts and a Provisional Order confirmed by Parliament carry on a water undertaking :

62 & 63 Vict.
c. cclx.

And whereas by section 21 (Confirmation of scheduled agreements) of the Workington Corporation Act 1899 (in this Order called "the local Act") the provisions of an indenture dated the ninth day of November one thousand eight hundred and ninety-eight between the Corporation the Cockermouth Urban District Council the Cockermouth Rural District Council and the Cockermouth and Workington Joint Water Committee were as altered and set forth in Part I of the Second Schedule to the local Act confirmed and made binding on the parties thereto :

And whereas clause 3 of the said indenture provides for the making by the Corporation of contributions to the Cockermouth Rural District Council towards certain expenses incurred by that council the amount of such contributions being one third of the said expenses and contains further provision for the making by that council of calls upon the Corporation and for the payment of interest on calls in arrears and the recovery of calls and interest thereon :

And whereas the Corporation have applied to the Minister of Health for the issue of a Provisional Order to alter or amend the local Act in the manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short title and
commencement.

1. This Order may be cited as the Workington Order 1944 and shall come into operation on the date of the Act of Parliament confirming it.

Alteration of
local Act.

2. The local Act shall be altered by the insertion at the end of section 21 (Confirmation of scheduled agreements) of the following proviso :—

" Provided that—

(a) clause 3 of the first-mentioned indenture shall as respects the contributions to be made for and in respect of the period of five years commencing on the first day of October one thousand nine hundred and forty-four and ending on the thirtieth day of September one thousand nine hundred and forty-nine have effect as if—

(i) in the first paragraph thereof the words 'The amount of such contribution shall be one third of such expenses as

aforesaid' were omitted and there were inserted in lieu thereof the words 'The amount of such contribution shall be—

for and in respect of the year ending on the thirtieth day of September one thousand nine hundred and forty-five the sum of five hundred pounds ;

for and in respect of the year ending on the thirtieth day of September one thousand nine hundred and forty-six the sum of four hundred pounds ;

for and in respect of the year ending on the thirtieth day of September one thousand nine hundred and forty-seven the sum of three hundred pounds ;

for and in respect of the year ending on the thirtieth day of September one thousand nine hundred and forty-eight the sum of two hundred pounds ;

for and in respect of the year ending on the thirtieth day of September one thousand nine hundred and forty-nine the sum of one hundred pounds ;

and the said amounts shall be payable by equal quarterly instalments on the thirty-first day of December the thirty-first day of March the thirtieth day of June and the thirtieth day of September in each year' :

Provided that if the Corporation shall before the thirty-first day of July one thousand nine hundred and forty-four pay to the rural district council a contribution in excess of one third of the expenses referred to in the said clause attributable to the six months ending on the thirtieth day of September one thousand nine hundred and forty-four the amount of such excess shall be applied in satisfaction pro tanto of the said instalments ;

(ii) the second paragraph thereof were omitted ; and

(iii) in the last paragraph thereof the words 'by the rural district council' were omitted and there were substituted for the word 'call' wherever it occurs the word 'instalment' ; and

(b) the said clause shall cease to have effect at the end of the thirtieth day of September one thousand nine hundred and forty-nine."

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Ministry of Health Provisional 7 & 8 GEO. 6.
Order Confirmation (Workington) Act, 1944.

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